

of that Act, which prohibits the transaction of the business of loan society at the places therein specified.

4.—(1) The total amount recoverable in respect of any loan made under the principal Act shall in no case exceed the amount lent, together with simple interest thereon at the rate of five pounds per centum per annum, and in ascertaining the amount due in respect of any such note an account shall be carried back for the entire period from the date of the original loan.

(2) The account provided for in subsection one of section two of the Charitable Loan Societies (Ireland) Act, 1900, in lieu of being issued together with the summons, shall, not less than fourteen days before the summons is issued, be forwarded by registered letter addressed to the borrower at his last known place of residence, and the said account shall show the allowances made for all sums paid by the borrower in respect of principal, interest, or otherwise.

5. In awarding costs in any proceedings taken under the principal Act the court shall have regard to any offer of settlement made by the defendant before the proceedings were instituted, and, if of opinion that any such offer was unreasonably refused by the loan society, shall order that the society shall pay costs to the defendant.

6. In the case of any proceedings taken under the principal Act, the complainant or defendant may, subject to rules of court, appeal to the county court from any decision of a court of summary jurisdiction, and no appeal shall, in the case of such proceedings, lie to a court of quarter sessions.

7. In any case where the court may decide to refer the taking of an account, it shall not be competent to refer the taking of the account to any person who is or has been an official or member of any loan society, and the fee for taking the account shall not in any case exceed two shillings and sixpence.

8. This Act may be cited as the Charitable Loan Societies (Ireland) Act, 1906, and shall be construed as one with the Charitable Loan Societies (Ireland) Act, 1900; and the principal Act, the said Act of 1900, and this Act may be cited together as the Charitable Loan Societies (Ireland) Acts, 1843 to 1906.

CHAPTER 24.

An Act to amend the Solicitors Acts. [1st August 1906.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled

1. Section sixteen of the Solicitors Act, 1888 (which authorises the registrar of solicitors to refuse to issue certificates in certain cases), shall apply to every solicitor who, being an undischarged bankrupt, applies for a fresh certificate or the renewal of a certificate to practise.

Application of 51 & 52 Vict. c. 65, s. 16 to solicitors who are bankrupts.

2. The registrar of solicitors shall be entitled, without fee, to inspect the file of proceedings in bankruptcy relating to any solicitor against whom proceedings in bankruptcy have been taken, and to be supplied with office copies of such proceedings on payment of the usual charge for such copies.

Power of registrar to inspect file of proceedings in bankruptcy of solicitor.

3. This Act may be cited as the Solicitors Act, 1906, and may be cited with the Solicitors Acts, 1839 to 1899.

Short title.

CHAPTER 25.

An Act to consolidate Enactments relating to Open Spaces.
[4th August 1906.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:

LOCAL AUTHORITIES.

1. Each of the following bodies shall be a local authority for the purposes of this Act, namely—

Local authorities.

The council of any county, of any municipal or metropolitan borough, or of any district:

The common council of the city of London:

Any parish council invested with the powers of this Act by an order of the council of the county within which the parish is situate.

POWER TO TRANSFER OPEN SPACES AND BURIAL GROUNDS TO LOCAL AUTHORITIES.

2.—(1) Where an open space is, in pursuance of a local or private Act of Parliament, placed under the care and management of trustees or other persons (in this section referred to as trustees), with a view to the preservation and regulation thereof as a garden or open space, the trustees may, in pursuance of a special resolution, and with the consent, signified by a special resolution, of the owners and occupiers of any houses which front upon the open space, or of which the owners and occupiers are liable to be specially rated for the maintenance of the open space,—

Power of trustees under local Act to transfer open space to local authority or admit other persons to enjoyment thereof.

(a) convey, for or without any consideration, to any local authority, their estate or interest in the open space or,